

Age Assurance Legislation in Georgia: Opportunities, Risks, and Recommendations

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Abstract— The rapid expansion of youth access to harmful online content has sparked new legislative efforts across the United States. In light of recent Supreme Court decisions upholding state-level age assurance requirements, this paper explores whether Georgia should pursue similar legislation. The first section presents arguments in favor of age assurance law, emphasizing child protection and proposing a token-based verification system that safeguards user privacy. The second section is a critique of such legislation, highlighting the risk of surveillance and technological limitations. The final section recommends a privacy-first pilot program focused on high-risk domains such as pornography and large social media platforms. This approach balances the need to protect children while still preserving privacy and our constitutional rights.

Index Terms—Online safety, privacy, age assurance, social media regulation, Georgia legislature

I. Support of Age Assurance Law

Georgia has a strong interest in safeguarding minors from online harms. Social science research increasingly documents the consequences of unmediated online exposure. A 2022 Pew Research Center study found that nearly six in ten teens feel “overwhelmed” by the constant pressure of social media, with many reporting disrupted sleep, worsening self-esteem, and difficulty focusing on schoolwork.[1] Meanwhile, sexually explicit content is easily accessible: studies show the average age of first exposure to pornography in the United States is now between 11 and 13 years old. Courts have long recognized states’ authority to protect children. In *Ginsberg v. New York* (1968), the Court held that the government has a “compelling interest in safeguarding the physical and psychological well-being of minors.” More recently, in upholding Mississippi’s law requiring parental consent for youth social media access, the Supreme Court declined to intervene, signaling a willingness to defer to states pursuing carefully framed protections.

For Georgia, adopting such a law would not only address pressing child welfare concerns but also demonstrate strong leadership in digital governance, especially as Congress remains deadlocked on national solutions to this issue. Privacy concerns often doom age assurance proposals. Many fear a world where browsing adult or even borderline content requires scanning an ID card. Georgia could distinguish itself by adopting a privacy-first model. The most promising approach is token-based age verification. In this design, a licensed intermediary (either public or private) confirms an individual’s age one time and issues a cryptographically signed “token” that simply signals “over 18” or “under 18”. Websites would only need to confirm the token’s validity, not the user’s identity.

The Center for Democracy & Technology describes tokenization as a way to “limit disclosure to the bare minimum needed for compliance.”[3] In practice, this prevents

commercial websites from collecting sensitive data and reduces the risks of hacks or misuse. It also allows tokens to be reused across platforms, limiting inconvenience for users. Georgia could enhance trust by mandating that intermediaries delete all underlying identification data immediately after token issuance, and by establishing strict penalties for unauthorized retention. These rules would demonstrate seriousness about protecting both children and adults online.

Critics sometimes argue that technical barriers make enforcement unrealistic. However, the digital ecosystem we currently live in is already structured around authentication systems (Google, Apple, Microsoft login). A token-based model builds on this infrastructure rather than reinventing the wheel. To make such a system workable for businesses, Georgia could implement it via a three-stage plan. First, create a state-run verification portal offering a simple plug-in that businesses can embed. Secondly, require only large, high traffic platforms, such as pornography sites and major social media companies to bear the full cost of integration. Finally, Georgia can phase in requirements over time to ensure that platforms have months to prepare for these changes. This tiered approach ensures proportionality and reduces litigation risk by demonstrating that the law is not overly burdensome.

II. Critique of Age Assurance Law

Even privacy-friendly designs are not immune to abuse. The Electronic Frontier Foundation has warned that “mandatory age verification is surveillance by another name.”[4] The central worry is that intermediaries or governments could track how often, and where, individuals use their tokens. Over time, this creates a map of one’s digital life, from which deep personal data could be drawn. This risk is not just speculation. When the UK proposed its Digital Economy Act in 2019, researchers found that many verification providers sought to monetize browsing data. Even though the law was eventually abandoned, this goes to show how quickly commercial incentives can undermine privacy assurances. This also raises a real concern for lawful speech. Marginalized groups such as LGBTQ+ youth might hesitate to access supportive forums or groups if they fear their activity is being logged. Survivors of abuse might avoid searching for counseling resources. As one ACLU attorney observed, “When identification becomes a prerequisite for speech, the cost of speaking rises, and the most vulnerable voices fall silent.”

Workability presents another serious challenge. Teens are often more tech-savvy than lawmakers. VPNs, foreign platforms, and falsified credentials all provide workarounds. In practice, age gates may just end up inconveniencing compliant adults more than determined minors. For smaller websites, compliance costs could be prohibitive. Even with a free state-run solution, the burden of technical integration and legal liability may drive operators to block all Georgia users. This would create a

fragmented internet for residents, creating commerce clause questions about whether a state law can effectively regulate global platforms. As mentioned earlier, the UK's failed rollout offers a sign of warning. Officials ultimately conceded that enforcement was "nearly impossible without over blocking lawful content." [5] Georgia risks potentially repeating this mistake unless it carefully limits scope.

An under-discussed consequence is the potential digital divide. Many households lack up-to-date government IDs. Undocumented immigrants, low-income families, and older teens from disadvantaged backgrounds could be disproportionately excluded. In effect, the law could further deepen inequalities in access to online resources. Another unintended effect is scope creep. Once the infrastructure exists, societal pressure may expand verifications to new domains such as gambling, violent media, and potentially even political content. As privacy scholars caution, "Child protection is often the thin end of the wedge for broader forms of speech regulation." [6]

III. Recommendation for Georgia

My own views lie closer to supporting the age assurance laws, because the harms of youth exposure to pornography and adult content are too great to ignore. Georgia should lead in addressing this issue but must do so carefully with respect for privacy for constitutional bounds. A well-crafted Georgia law should limit scope by applying to high- categories such as commercial pornography sites and large social media platforms. Use Privacy- Preserving Tools such as token-based verification to avoid websites storing sensitive personal data. Provide Oversight to establish an independent digital privacy commission to regulate intermediaries and prevent surveillance abuse. Finally, a strong Georgia law should include safeguards that mandate deletion of ID data after verification, and exempt education or new websites from these requirements. Georgia now stands at a turning point. The evidence is clear: exposure to pornography and harmful online environments can have lasting negative effects on young people's development. Age assurance laws, if carefully designed, can help mitigate these harms while respecting adults' rights. By pairing legislation with education and oversight, Georgia can protect its youth, honor our constitutional values, and provide a national model for balanced digital governance.

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